

City Contract No. _____

PROFESSIONAL SERVICES AGREEMENT

for

High Plains Arboretum: Greenhouse

This Professional Services Agreement (“Agreement”) is made and entered into by and between the City of Cheyenne, located at 2101 O’Neil Avenue, Cheyenne, Wyoming 82001 (“City”), and TDSi - The Design Studio, inc., located at 1610 Pioneer Avenue, Cheyenne, Wyoming, 82001 (“Consultant”). This Agreement shall become effective upon the date of the last signature affixed hereto.

RECITALS

In consideration of the mutual covenants and obligations herein expressed, it is agreed by and between the parties as follows:

1. SCOPE OF WORK

The Consultant agrees to provide services as described for the above-mentioned project, in accordance with the Scope of Work attached hereto as Exhibit A, incorporated by reference and expressly made a part hereof.

2. TIME OF PERFORMANCE

The work included in this Scope of Work shall be completed by December 31, 2026, as stated in Exhibit A.

3. COMPENSATION

In consideration of the services to be performed pursuant to this Agreement, the Consultant will bill the City, and the City agrees to pay Consultant a not to exceed amount of one hundred fifty-four thousand two hundred and forty-three dollars (\$154,243.00) as stated in Exhibit A.

4. CONSULTANT RESPONSIBILITY

In providing services under this Agreement, the Consultant shall perform in a manner consistent with that degree of care and skill ordinarily exercised by members of the same profession currently practicing under similar circumstances. Upon notice to the Consultant, the Consultant will, without additional compensation, correct those services not meeting such a standard.

5. COMPLIANCE WITH LAWS

The Parties agree that they will perform their obligations as provided in this Agreement in accordance with all applicable laws and ordinances.

6. DRUG-FREE WORKPLACE

In compliance with the Drug-Free Workplace Act of November 1988, the City of Cheyenne has established an Alcohol and Controlled Substance Policy that pertains to alcohol and drug usage by City Employees. All architects, engineers, and other consultants under contract with City of Cheyenne, and their employees and sub-consultants, are required to comply with the provisions of the City's Alcohol and Controlled Substance Policy for drug and/or alcohol usage on City property or other sites occupied by the Consultant while performing the duties and responsibilities of the Agreement. It is the responsibility of the Consultant to familiarize themselves with the requirements of this policy and to inform all their employees and sub-consultants of the requirements and ensure their compliance. If the Consultant, their employees or sub-consultants are found in violation of this policy, the Agreement may be terminated.

7. INDEMNIFICATION/HOLD HARMLESS

To the fullest extent permitted by law, Consultant shall indemnify and hold harmless the City of Cheyenne, its officers, directors, partners, employees, and representatives, from and against losses, damages, and judgments arising from claims by third parties, including reasonable attorneys' fees and expenses recoverable under applicable law, but only to the extent they are found to be caused by a negligent or wrongful act, error, or omission of Consultant or Consultant's officers, directors, members, partners, agents, employees, or subconsultants in the performance of services under this Agreement.

8. INSURANCE REQUIREMENTS

The Consultant must provide proof of the following insurance coverages:

Commercial General Liability Insurance

For claims arising out of bodily injury, illness, or death, or from damage to or destruction of property of others, including loss or use thereof, with minimum limits of \$1,000,000 per occurrence, \$2,000,000 aggregate for the entire term of the Agreement.

Workers' Compensation

Workers' compensation coverage shall be in effect for the entire term of the Agreement, as required by Wyoming law, for all employees or agents providing services under this Agreement. Consultant shall provide the City with proof of workers' compensation or employer's liability insurance coverage.

Professional Liability Insurance

The Consultant shall provide proof of professional liability insurance or errors and omissions liability insurance in an amount not less than \$500,000 to protect the City from any and all claims arising from the Consultant's negligence in the performance of duties under this Agreement. The City prefers that this liability insurance coverage be provided pursuant to an "occurrence" policy.

If this coverage is provided pursuant to a “claims made” policy:

- a. Consultant shall, concurrently with the execution of this Agreement, provide the City with a certificate of insurance demonstrating that such coverage is or shall be in effect at the time the Consultant begins the provision of services under this Agreement; and
- b. In the event the Consultant’s services extend into a future policy period, the Consultant shall, prior to the policy expiration date, provide the City with a new certificate of insurance demonstrating that such coverage is or shall be in effect during all periods of time that Consultant will provide services under this Agreement; and
- c. Consultant shall maintain said “claims made” coverage for a period of five (5) years following the last date that Consultant has provided services under this Agreement; and
- d. In the event the Consultant or the insurer terminates “claims made” coverage prior to the expiration of the periods provided in subparagraphs a., b., or c. of this paragraph, the Consultant shall provide to the City advance written notification of the termination of said coverage and shall provide the City with an endorsement for an extended reporting period (“tail coverage”) which shall be in effect for a period of time not less than five (5) years following the last date that Consultant has provided services under this Agreement.

Additional Insurance Information

The Consultant shall name the City of Cheyenne as **an Additional Insured** by endorsement on its insurance policies and shall provide the City with a copy of the endorsements. This requirement does not apply to workers’ compensation and professional liability insurance policies.

Consultant shall provide the City with certificates of insurance acknowledging the above-stated coverages prior to beginning any work under this Agreement.

It is understood and agreed that these policies are primary and not contributory. All policies required under this Agreement shall be in effect for the duration of the Agreement. It shall be an affirmative obligation upon Consultant to immediately notify in writing the city risk manager, city clerk, and city attorney of any fact, circumstance, or occurrence that has resulted in or may result in the cancellation of, or substantive change to any insurance coverage required by this Agreement, and failure to do so shall be construed to be a breach of this Agreement.

If requested by the City, the Consultant shall provide the City with copies of insurance policies and/or policy endorsements listing the City of Cheyenne as an additional insured. The City’s failure to request or review such policies, endorsements, or certificates shall not affect the City’s rights or Consultant’s obligation hereunder.

Any insurance company providing coverage under this Agreement shall have a minimum A. M. Best rating of A- (excellent).

9. MINORITY AND DISADVANTAGED BUSINESS ENTERPRISES (49 C.F.R. Part 26)
All parties to this Agreement assure that no person will be excluded from participation in, denied the benefits of, or otherwise discriminated against, in connection with the award and performance of this Agreement on the grounds of age, race, color, disability, national origin, or sex.
10. MONTHLY REPORT
With every monthly billing, Consultant shall provide the City Representative with a written statement of the status of the work with respect to the Scope of Work, time sheets, and work schedule. Failure to provide the required monthly report will delay processing of any payment request until the report is submitted.
11. INDEPENDENT CONSULTANT
The Consultant shall function as an independent consultant for the purposes of this Agreement. The Consultant shall assume sole responsibility for any debts or liabilities that may be incurred by the Consultant in fulfilling the terms of this Agreement. Nothing in this Agreement shall be interpreted as authorizing the Consultant or its agents or employees to act as an agent or representative of or on behalf of the City or to incur any obligation of any kind on the behalf of the City.
12. TAXES
The Consultant agrees to pay all valid taxes, excises, license fees, permit fees, bills, debts, and obligations incurred by and in connection with its operations under this Agreement.
13. DEFAULT
Each and every term and condition in this Agreement shall be deemed to be a material element of the Agreement. In the event either party should fail or refuse to perform according to the terms of this Agreement, such party may be declared in default.
14. REMEDIES
In the event a party has been declared in default, such defaulting party shall be allowed a period of fifteen (15) days within which to cure the default. In the event the default remains uncorrected, the non-defaulting party declaring default may elect to:
 - a. Terminate the Agreement and seek damages, which damages shall not exceed the contract amount; or
 - b. Treat the Agreement as continuing and require specific performance.
15. TERM AND TERMINATION
The term of this Agreement shall be from date of execution to December 31, 2026. The parties may by mutual written agreement renew or extend this Agreement.

The City may, without cause, and upon thirty (30) days' written notice to the Consultant, terminate this Agreement in whole or in part at any time, for the City's convenience. Upon receipt of such notice, the Consultant shall:

- a. Discontinue all services affected; and
- b. Deliver to the City within five (5) days all data, drawings, specifications, reports, estimates, summaries, and such other information and materials as may have been accumulated by the Consultant in performing this Agreement, whether completed or in process.
- c. In the event of termination for convenience, the City will pay the Consultant for accepted work done and expenses incurred to the date of termination. Such acceptance shall not be unreasonably withheld.

16. ADDITIONAL REMEDIES

In the event the Consultant fails to strictly perform in accordance with this Agreement, the City may elect to correct the deficiencies and charge the Consultant. In the event of default of any of the conditions by either party which shall require the party not in default to commence legal or equitable action against the defaulting party each party shall bear its own costs and expenses, including without limitation, attorney's fees.

17. GOVERNING LAW, JURISDICTION AND VENUE

The construction, interpretation, and enforcement of this Agreement shall be governed by the laws of the State of Wyoming. The courts of the State of Wyoming shall have jurisdiction over any action arising out of this Agreement and over the parties, and the venue shall be the First Judicial District, Laramie County, Wyoming.

18. GOVERNMENTAL IMMUNITY

The City of Cheyenne, along with its officials and employees, does not waive its governmental immunity by entering into this Agreement, except to the extent necessary for the parties to pursue a contract action to clarify or enforce the written terms of the Agreement. Furthermore, the City specifically retains all immunities and defenses available to it as a sovereign or governmental entity pursuant to Wyo. Stat. § 1-39-101, *et seq.*, and all other relevant state and federal law. Designations of venue, choice of law, enforcement actions, and similar provisions should not be constructed as a waiver of governmental immunity. The parties agree that any ambiguity in this Agreement shall not be strictly construed, either against or for either party, except that any ambiguity as to governmental or sovereign immunity shall be construed in favor of governmental immunity.

19. MONITORING ACTIVITIES

The City shall have the right to monitor all activities related to this Agreement that are performed by the Consultant or its sub-consultants. This shall include, but not be limited to, the right to make site inspections at any time and with reasonable notice; to bring experts and consultants on site to examine or evaluate completed work or work in progress; to examine the books, ledgers, documents, papers, and records pertinent to this Agreement; and to observe personnel in every phase of performance of the related work.

20. OWNERSHIP OF DOCUMENTS AND WORK PRODUCT

All deliverables by the Consultant, all work product of the Consultant, all notes, calculations, memoranda, or any other documentation generated by the Consultant pursuant to the scope of this Agreement, shall be the property of the City of Cheyenne and shall be provided to the City of Cheyenne immediately upon request.

21. NON-DISCRIMINATION

The Consultant shall comply with the Civil Rights Act of 1964, the Wyoming Fair Employment Practices Act (Wyo. Stat. § 27-9-105, *et seq.*), the Americans With Disabilities Act (ADA), as amended, 42 U.S.C. § 12101, *et seq.*, and the Age Discrimination Act of 1975 and any properly promulgated rules and regulations thereto, and shall not discriminate against any individual on the grounds of age, sex, creed, color, race, religion, national origin, ancestry, pregnancy or qualifying disability in connection with the performance under this Agreement.

22. FORCE MAJEURE.

The performance of the Agreement by either party shall be subject to force majeure including, but not limited to, acts of God, fire, flood, natural disaster, war or threat of war, acts or threats of terrorism, civil disorder, unauthorized strikes, governmental regulation or advisory, recognized health threats as determined by the World Health Organization, the Centers for Disease Control, or local government authority or health agencies (including, but not limited to, the health threats of COVID-19, H1N1, or similar infectious diseases), curtailment of transportation facilities, or other similar occurrence beyond the control of the parties, where any of those factors, circumstances, situations, or conditions or similar ones prevent, dissuade, or unreasonably delay the performance required by this Agreement. The Agreement may be cancelled by either party, without liability, damages, fees, or penalty, and any unused deposits or amounts paid shall be refunded, for any one or more of the above reasons, by written notice to the other party.

23. PROFESSIONAL REGISTRATION

The Consultant shall endorse, as required by law, plans and reports prepared under this Agreement, and shall affix thereto his or her seal of professional registration, showing that he or she is licensed to practice in the State of Wyoming, if necessary.

24. CONTROLLING TERMS

In the event of any conflict or inconsistency between the terms of this Agreement and the terms of Exhibit A, the terms of this Agreement shall control.

25. ENTIRETY OF AGREEMENT

This Agreement consisting of seven (7) pages, and Exhibit A consisting of twelve (12) pages, contain the entire understanding of the parties. There are no other terms or conditions, written or oral, concerning or controlling this matter.

IN WITNESS WHEREOF, the Parties to this Agreement, through their duly authorized representatives, have executed this Agreement on the days and dates set out below and certify that they have read, understood, and knowingly and voluntarily agreed to the terms and conditions of this Agreement. This Agreement may be executed in multiple counterparts, each of which shall be deemed an original, but all of which together shall constitute one and the same instrument.

City of Cheyenne

(SEAL)

By: _____
Patrick Collins, Mayor

Attest:

Kylie Soden, City Clerk

Date: _____

Consultant

TDSi - The Design Studio, inc.

By: _____

Print Name: _____

Date: _____

Exhibit A



Proposal for Architectural Services for HIGH PLAINS ARBORETUM RENOVATION

GREENHOUSE
Laramie County, Wyoming

May 28, 2025

City of Cheyenne
Community Recreation and Events Department
2101 O'Neil Avenue
Cheyenne, Wyoming 82001

ATTN: Jason Sanchez – Director, Community Recreation & Events

**RE: Proposal for Architectural Services for
HIGH PLAINS ARBORETUM RENOVATION
Laramie County, Wyoming**

Jason:

Thank you again for the opportunity to provide this proposal for professional services in support of various projects at the High Plains Arboretum. We would be honored to work with you once again.

As you review our proposal, please do not hesitate to reach out with any questions. We would be pleased to meet with you to further discuss our approach and how we can best support your project goals.

TDSi History and Relevant Project Experience

TDSi is a Cheyenne-based architectural firm with a 24-year history of delivering high-quality, sustainable design solutions supported by a strong commitment to client service. Our diverse portfolio includes recreational facilities, K–12 and higher education buildings, mixed-use developments, large-scale commercial projects, renovations, master planning, and historic preservation work.

What Sets Our Design Team Apart

Familiarity with the Project

TDSi and our consulting team bring direct, recent experience with the site through our involvement in the 2024 Facility Condition Assessment of the proposed High Plains Research Station and Arboretum State Historic Site for Wyoming State Parks, Historic Sites & Trails. This background gives us valuable insight as the project progresses.

Proximity and Accessibility

We believe close geographic proximity to the project site is essential to ensuring consistent communication and responsive service throughout all phases—from initial design through construction and into the warranty period. TDSi and the majority of our consultants are based locally and are readily available for on-site visits.

Depth of Experience

With over two decades of design experience across a wide range of project types, TDSi brings a wealth of knowledge to the table. This experience is further enriched by the strong track records of our consulting partners, who have contributed to numerous similar projects.

Understanding of Local Requirements

Our team has extensive experience working with the City of Cheyenne and Laramie County, including compliance with the City of Cheyenne and Board of Public Utilities Construction Specifications and Standard Drawings, current building codes, and other regulatory frameworks. Members of our team have served on building code adoption committees, the Unified Development Code (UDC) committee, the Building Code Board of Appeals, the Cheyenne Historic Preservation Board and the State of Wyoming Review Board for the National historic Register.

Creative and Responsive Solutions

TDSi has a proven reputation for creative problem-solving and delivering innovative solutions tailored to project needs and constraints. Our design approach is grounded in thoughtful analysis and a commitment to maximizing value and opportunity for our clients.

We understand that technical expertise alone is not enough. Listening closely to the Owner's and Users' needs is key to developing effective and meaningful design solutions. Our team is committed to aligning our work with the mission, vision, and character of the Community Recreation and Events Department—and to supporting your commitment to excellence.

Thank you for considering TDSi as a partner for this important project. We look forward to the opportunity to move forward in your selection process.

Thank you again,



Randy Byers, AIA, LEED AP BD+C

TDSi President

for the firm

randy@tdsi.us

SCOPE OF SERVICES

- **The general description of the Scope of Services for this project is as follows:**
 - Architectural services for:
 - Site:
 - High Plains Arboretum
 - Total Area: Existing buildings area to remain.
 - Height of Buildings: Existing structures to remain.
 - Number of buildings: This project entails work at the existing Headhouse, Greenhouse and Lath House
 - Planning and Zoning Approvals:
 - Site Plan Review: Not included or anticipated.
 - Engineering Plan Review: Not included or anticipated.
 - Surveying:
 - Not included or anticipated.
 - Civil Design:
 - Included for limited site work.
 - Drainage Study:
 - Not Included or anticipated.
 - Traffic Study:
 - Not included or anticipated.
 - Structural System:
 - Existing building structure to remain.
 - Structural Design:
 - Included for limited structural repairs
 - HVAC:
 - Existing HVAC system to remain.
 - Plumbing:
 - Plumbing renovation is limited to work noted below.
 - Fire Sprinkler System:
 - Not included or anticipated.
 - Electrical:
 - Electrical renovation is limited to work noted below.
 - Acoustical Design/ Mechanical Noise & Vibration Control:
 - Not included or anticipated.
 - Hazardous Material Testing and Abatement:
 - By others.
 - **To arrive at a more definitive Scope of Work and Scope of Services we took the scope outlined in the 2024 Facility Condition Assessment of the proposed High Plains Research Station and Arboretum State Historic Site for Wyoming State Parks, Historic Sites & Trails, and made the following adjustments:**
 - **Deleted hazardous material abatement – to be contracted separately by the Owner**
 - **Adjusted tasks (added and deleted) per meeting with the Owner**

The Scope of Work for each building is more specifically outlined below:

- Greenhouse:**

- Replace existing wood rafters. (removal of existing by abatement contractor)
- Replace existing sloped lap glazing. (removal of existing by abatement contractor)
- Replace operable roof panels. (removal of existing by abatement contractor)
- Replace operable sidewall glazing panels. (removal of existing by abatement contractor)
- Repair existing concrete foundations where cracked or damaged and provide parge coat of cement or other appropriate coating.
- Inspect the existing radiant heating system and determine if it can be made operable.
- Existing Steam or hot water piping from the previous original heating system shall remain but will not be made operable.
- Install new lighting and receptacles.
- replace existing doors. (removal of existing by abatement contractor)
- Repair and repaint existing brackets, trim, and glazed canopies at each end of the greenhouse.
- Reinstall operating mechanisms for operable roof panels and sidewall panels.
- Remove existing chicken wire from exterior protective frames by abatement contractor. Existing steel pipe framing shall remain.

SCOPE MATRIX:

DESIGN PHASE SERVICES (35% SD, 65% DD and 100% CD Documents)				Architect	Civil Engineer	Structural Engineer	Mechanical Engineer	Electrical Engineer
Develop a design solution based upon the approved project requirements				Yes	Yes	Yes	Yes	Yes
Meetings with Owner to review the design solution options								
Phase:	35%	Location:	Cheyenne	Yes	No	No	No	No
Phase:	65%	Location:	Cheyenne	Yes	Yes	No	No	No
Phase:	100%	Location:	Cheyenne	Yes	No	No	No	No
Synthesize the aspects of the design solution options preferred by the Owner to develop a final solution				Yes	Yes	Yes	Yes	Yes
Upon the Owner’s approval of the design solution, prepare Construction Documents indicating requirements for construction of the project, anticipated to include:								
	Drawings			Yes	Yes	Yes	Yes	Yes
	Technical specifications for materials, systems, etc.			Yes	Review	Yes	Yes	Yes
	Written Bidding Requirements			No	No	No	No	No
Total Meetings with Owner (Maximum)				5	1	0	0	0
Total Site Visits (Maximum)				5	2	1	1	1

BIDDING/NEGOTIATION PHASE SERVICES			Architect	Civil Engineer	Structural Engineer	Mechanical Engineer	Electrical Engineer
Assist the Owner in obtaining proposals and award of the Contract for Construction			Yes	NA	NA	NA	NA
Distribution of Bid Documents will be via:	CDQuest.com ?	NA	NA	NA	NA	NA	NA
	Architect?	NA	NA	NA	NA	NA	NA
	Owner?	Yes	NA	NA	NA	NA	NA
Coordination of bidding, including:							
	Answering Bidders questions		Yes	Yes	Yes	Yes	Yes
	Processing Bidder's Request for Interpretation of Documents and Requests for Product Substitutions		Yes	Yes	Yes	Yes	Yes
	Preparation of Addenda, if required		Yes	Assist	Assist	Assist	Assist
Attend Pre-Bid Meeting	Location:	Cheyenne	Yes	No	No	No	No
Prepare Bid Tabulation Form?			NA	NA	NA	NA	NA
Attend Bid Opening	Location:	Cheyenne	Yes	NA	NA	NA	NA
Evaluation of bids and recommendation to Owner regarding award of bid			Yes	Assist	Assist	Assist	Assist
Prepare Notice of Intent to Award Contract?			Assist	NA	NA	NA	NA
Prepare Owner/Contractor Agreement?			Yes	NA	NA	NA	NA
Review Contractor's Post Bid Submittals?			Assist	NA	NA	NA	NA
Meetings with Owner (Bid Review)			1	0	0	0	0
Site Visits			0	0	0	0	0

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CONSTRUCTION ADMINISTRATION (CA) PHASE			Architect	Civil Engineer	Structural Engineer	Mechanical Engineer	Electrical Engineer
Maximum Length of Construction:			26 weeks spread over the schedule noted above				
Attend Pre-Construction Conference	Location:	Cheyenne	1	1	0	0	0
Owner/Architect /Contractor (OAC) Meetings	Frequency:	Every 2 Weeks	Yes, with Periodic Site Visits	No	No	No	No
Periodic site visits over the construction phase (generally with OAC)			10 max over 20 weeks	4 max	1 max	1 max	2 max
Preparation of Field Report with photographs or other documentation as appropriate for each site visit			Yes	Yes	Yes	Yes	Yes
Review of contractor's submittals			Yes	Yes	Yes	Yes	Yes
Respond to Requests for Information (RFI's) from the contractor (Reasonable Amount)			Yes	Yes	Yes	Yes	Yes
Substantial Completion Inspections			1 max	1 max	1 max	1 max	1 max
Preparation of Punch List			1 max	1 max	1 max	1 max	1 max
Final Completion Inspections			1 max	1 max	0	0	0
Additional Meetings with Owner			1	0	0	0	0

POST CONSTRUCTION PHASE	Architect	Civil Engineer	Structural Engineer	Mechanical Engineer	Electrical Engineer
Integration of Contractor Provided Record Drawing Information into CAD Drawings	No	No	No	No	No
Warranty Inspections					
11 th Month Inspections	1	0	0	0	0
Meetings with Owner (if required)	1	0	0	0	0

PROJECT DELIVERY

- Project Delivery: Design-Bid-Build.
 - Depending on final schedule and coordination with the City, a multi-phased project is anticipated with separate bid packages and the potential for award to multiple contractors.
 - All work is proposed to be bid and awarded in 2025.

CONSULTANTS

- The services of following outside consultants, as defined in the Scope of Services noted above, are included in this proposal and the fees noted herein:

CIVIL ENGINEER		Darci Hendon, PE, Principal Theena Engineering Cheyenne, Wyoming
STRUCTURAL ENGINEER		Jera Likely, PE, Senior Engineer Martin / Martin Wyoming Cheyenne, Wyoming
MECHANICAL ENGINEER		Justin Montgomery, PE, Principal DesignPoint Engineering Cheyenne, Wyoming
ELECTRICAL ENGINEER		Mike Gust, PE, Principal Gust Engineering Cheyenne, Wyoming

If during the course of the project, the services of additional outside consultants are deemed necessary, are requested by the Owner, or are required by the authorities having jurisdiction over the Project, such services will be considered a Reimbursable Expense. We will coordinate with the Owner to add consultants to our team that are mutually agreeable to both the Owner and our firm.

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ANTICIPATED PROJECT COST AND PROFESSIONAL SERVICES FEES

- To arrive at a more definitive Scope of Work, Scope of Services and Fee Proposal we took the scope and Estimate of Probable Construction Costs from the 2024 Facility Condition Assessment of the proposed High Plains Research Station and Arboretum State Historic Site for Wyoming State Parks, Historic Sites & Trails, and made the following adjustments:
- Deleted hazardous material abatement – to be contracted separately by the Owner
- Adjusted tasks (added and deleted) per meeting with the Owner

	GREENHOUSE
SCOPE & FEES	
Original Scope Anticipated Renovation Cost INC Abatement & Fees	\$1,107,607
Revised Scope Anticipated Renovation Cost INC Fees NIC Abatement	\$605,369
Original Architectural Fees Extracted from FCA	\$101,483
Revised Architectural Fees	
Base Fee	\$154,242
Less Donated Time Already Expensed	NA
Final Fee	\$154,242
35% Documents Phase (Schematic Design (SD) Phase)	\$15,924
65% Documents Phase (Design Development (DD) Phase)	\$37,811
100% Documents Phase (Construction Documents (CD) Phase)	\$53,735
Bidding/Negotiation (BN) Phase	\$6,962
Construction Administration (CA) Phase	\$39,811
TOTAL FEES	\$154,243

It is recognized that neither the Architect nor the Owner has control over the cost of labor, materials or equipment, over the Contractor's or Subcontractor's methods of determining bid prices, or over competitive bidding, market or negotiating conditions. Accordingly, the Architect cannot and does not warrant or represent that bids or negotiated prices will not vary from any Estimates of Probable Construction or Renovation Cost or any evaluation prepared by the Architect.

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ANTICIPATED PROJECT SCHEDULE

- For this project we propose to provide the Architectural and Engineering services described herein, based upon the noted scope, in accordance with the following schedule.

GREENHOUSE	
SCHEDULE	
City Council 1st Reading	6/9
City Council Finance	6/17
City Council Final Approval	6/23
Contract Signature	6/24
Notice To Proceed	6/25
35% Design Complete	8/1 37 days
65% Design Complete	9/11 41 days
100% Design Complete	10/22 41 days
Legal Advertisement 1	10/22
Legal Advertisement 2	10/29
Pre-Bid Meeting	11/3
Final Addenda	11/6
Bid Opening	11/13
Hazardous Material Abatement	Spring 2026
City Council 1st Reading	11/24
City Council Finance	12/2
City Council Final Approval	12/8
Contract Signature	12/9
Notice To Proceed	12/10
Renovation Complete	2026

TDSi RATE SCHEDULE

- TDSi Hourly Rates are as follows for 2025:

- | <u>Staff Member</u> | <u>Rate Per Hour</u> |
|---|----------------------|
| Randy Byers, AIA, LEED AP ^{BD+C} – TDSi Principal, Architect | \$ 215 |
| Clint Taylor, AIA, PE, LEED AP ^{BD+C} - TDSi Associate, Architect | \$ 165 |
| Will Byers, AIA Associate - TDSi Associate, Project Manager/Intern Architect..... | \$ 140 |
| Stephanie Lowe, Project Manager, Historic Preservation Specialist | \$ 130 |
- Legal testimony will be invoiced at 2 times the above noted hourly rate; Research and consultation as an Expert Witness, and time giving depositions will be billed at 1.5 times the above noted hourly rate.

ADDITIONAL SERVICES

- Additional Services will be invoiced at the Hourly Rates current at the time the services are provided.
- If the professional services covered by this proposal have not been completed within the stated duration noted, through no fault of the Architect, additional services shall apply. Architect shall give written notice to the owner if additional services are anticipated, prior to additional services occurring.

CONSULTANT SERVICES

- Consultant fees not included within basic scope of services, and reimbursable expenses will be billed at cost plus 10% markup.

REIMBURSABLE EXPENSES

- Expenses incurred in connection with the project will be billed at actual cost plus a 10% markup.
- Examples of such expenses are:
 - out of town travel and subsistence expenses;
 - reproduction costs for documents for other than the Architect's use or record;
 - postage and shipping charges.

Hourly Rates and Reimbursable Expenses Rates are subject to review and change on a periodic basis, or as circumstances require.

BILLING SCHEDULE

- E-Invoice Format - All invoices will be emailed to the Client, with an option for the Client to pay online.

PRODUCTS OF SERVICE

- In general, the anticipated Products of Service include the following:
 - At Completion of 35% Documents Phase (Schematic Design Phase):
 - Drawings
 - At Completion of 65% Documents Phase (Design Development Phase):
 - Drawings
 - Technical Specifications (outline)
 - At Completion of 100% Documents Phase (Construction Documents Phase):
 - Drawings
 - Technical Specifications
 - Construction Administration Phase:
 - Architect's Field Reports
 - Post Construction (Warranty Period) Phase:
 - Record Drawings
 - 11th Month Inspection Report

SERVICES NOT INCLUDED

- The Architect's fees do not include the following:
 - Preparation of Planning & Zoning applications, maps, etc. including annexation, Site Plan Review, etc.
 - Surveying
 - Hazardous Material (Asbestos, Lead, Mold, etc.) Testing / Inspection, Abatement Design or Abatement
 - Environmental Investigations (Phase I or Phase II)
 - Geotechnical Investigations
 - Acoustical Design
 - Interior Acoustic Design
 - Sound Isolation Design
 - Mechanical Noise & Vibration Control
 - Landscape or Irrigation System Design
 - Consultant other than those specifically listed above
 - Special Consultants
 - Furniture Fixtures & Equipment Design or Documents
 - Preparation of documents for Approvals required by Governmental Agencies, except as noted.
 - Manual Distribution of Bid Documents
 - Plan Review Fees
 - Building Permit Fees
 - Printing, except as specifically noted herein
 - Construction Testing Fees
 - Specialty Inspections
 - Modifications to the documents or repair detailing that are the result of contractor quality control deficiencies
 - Models
 - Post Construction Services, except as noted herein
 - Presentation or Meetings with Government Officials, Financial Institutions, etc. except as noted.
 - Utility water, sewer, or natural gas piping further than 5 feet outside the building including landscape irrigation.
 - Ground source heat pump system design including loop field design.
 - Fire sprinkler design.
 - Energy modeling.
 - Life cycle cost analysis of multiple mechanical systems
 - LEED Documentation
 - Detailed Quantity Take-off Construction cost estimates
 - Commissioning of the mechanical systems
 - Ground Vibration Testing and Recommendations
 - Testing and analysis of ground borne environmental vibrations
 - Exterior Sound Isolation Design
 - Detailed Analysis of Environmental Noise (CADNA Model)
 - Security Design
 - Travel outside Cheyenne, Wyoming
 - Professional Liability Coverage beyond limits noted below
 - Preparation of Nominations to the National Historic Register

The services noted above may be requested by the Owner as Additional Services.

LIMIT OF LIABILITY

- The Owner agrees, to the fullest extent permitted by law, to limit the Architect's total liability to the Owner, and to all the construction contractors and subcontractors on the project, for any and all injuries, claims, losses, costs, damages, or claims expenses from any source or causes, so that the total aggregate liability to the Architect to all those named shall be limited to the Architect's net fees, excluding consultants and reimbursable expenses. Such causes include, but are not limited to, negligence, error or omissions, strict liability, breach of contract or warranty.

INSURANCE

- Professional Liability Insurance:
 - TDSi currently carries a Professional Liability insurance policy provided by CNA through Victor Insurance Managers Inc. / Continental Casualty Company. The policy is a "claims-made" policy with a maximum limit of liability of \$1,000,000 per claim, with an aggregate limit of \$2,000,000 per year. Our firm has never had a claim against our policy. A Certificate of Insurance will be provided upon written request.
- General Business Liability Insurance:
 - TDSi carries a General Business Liability policy provided by AMCO Insurance Company and Allied Insurance Company of America. A Certificate of Insurance that enumerates the various coverage limits will be provided upon written request.

TERM OF PROPOSAL

- This proposal will be valid 30 days from issuance.

Submitted By:

Randy Byers, AIA, LEED AP BD+C
TDSi President
for the firm
randy@tdsi.us